

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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CHARLOTTE HEDGES and SHALIK HEDGES,

Plaintiffs,

-against-

VERIFIED COMPLAINT
Index No.

THE CITY OF NEW YORK; SERGEANT IMAD BEYDOUN, Shield 3953; LIEUTENANT MAGGIE CLAMP; DETECTIVE NELSON CORDERO; DETECTIVE MARK HOLDER; DETECTIVE ESSENCE JACKSON; DETECTIVE EDDIE MARTINS; POLICE OFFICER ANTHONY SCIORTINO, Shield 5372, and POLICE OFFICERS JOHN DOE 1-10, the names being fictitious and presently unknown, individually and in their official capacity as employees of the New York City Police Department,

Defendants.

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Plaintiffs, CHARLOTTE HEDGES and SHALIK HEDGES, by their attorneys, RUBERT & GROSS, P.C., complaining of defendants, THE CITY OF NEW YORK (“CITY”), SERGEANT IMAD BEYDOUN, Shield 3953 (“BEYDOUN”); LIEUTENANT MAGGIE CLAMP (“CLAMP”); DETECTIVE NELSON CORDERO (“CORDERO”); DETECTIVE MARK HOLDER (“HOLDER”); DETECTIVE ESSENCE JACKSON (“JACKSON”); DETECTIVE EDDIE MARTINS (“MARTINS”); POLICE OFFICER ANTHONY SCIORTINO, Shield 5372 (“SCIORTINO”); and POLICE OFFICERS JOHN DOE 1-10 (“JOHN DOE 1-10”), allege as follows:

1. At all times hereinafter mentioned, Plaintiff, CHARLOTTE HEDGES, was and is a citizen of the United States residing in Kings County, City and State of New York.

2. At all times hereinafter mentioned, Plaintiff, CHARLOTTE HEDGES, was and is the mother of Plaintiff, SHALIK HEDGES.

3. At all times hereinafter mentioned, Plaintiff, SHALIK HEDGES, was and is a citizen of the United States residing in Kings County, City and State of New York.

4. At all times hereinafter mentioned, Defendant, CITY, was and is a municipal corporation created, organized and duly existing under and by virtue of the laws of the State of New York.

5. At all times hereinafter mentioned, Defendant, CITY, its agents, servants and/or employees operated, maintained, managed and controlled the New York City Police Department, including all police officers thereof.

6. At all times hereinafter mentioned, the New York City Police Department was an agency, instrumentality, department of Defendant, CITY and Defendant, CITY, derived benefits from the activities of the New York City Police Department.

7. At all times hereinafter mentioned, Defendant, BEYDOUN, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

8. Defendant, BEYDOUN, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

9. At all times hereinafter mentioned Defendant, BEYDOUN, was acting within the scope of his employment as a police officer with the New York City Police Department.

10. At all times hereinafter mentioned Defendant, BEYDOUN, was acting under color of law and authority as a police officer with the New York City Police Department.

11. Defendant, BEYDOUN, is sued individually and in his official capacity.

12. At all times hereinafter mentioned, Defendant, CLAMP, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

13. Defendant, CLAMP, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

14. At all times hereinafter mentioned Defendant, CLAMP, was acting within the scope of her employment as a police officer with the New York City Police Department.

15. At all times hereinafter mentioned Defendant, CLAMP, was acting under color of law and authority as a police officer with the New York City Police Department.

16. Defendant, CLAMP, is sued individually and in her official capacity.

17. At all times hereinafter mentioned, Defendant, CORDERO, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

18. Defendant, CORDERO, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

19. At all times hereinafter mentioned Defendant, CORDERO, was acting within the scope of his employment as a police officer with the New York City Police Department.

20. At all times hereinafter mentioned Defendant, CORDERO, was acting under color of law and authority as a police officer with the New York City Police Department.

21. Defendant, CORDERO, is sued individually and in his official capacity.

22. At all times hereinafter mentioned, Defendant, HOLDER, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

23. Defendant, HOLDER, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

24. At all times hereinafter mentioned Defendant, HOLDER, was acting within the scope of his employment as a police officer with the New York City Police Department.

25. At all times hereinafter mentioned Defendant, HOLDER, was acting under color of law and authority as a police officer with the New York City Police Department.

26. Defendant, HOLDER, is sued individually and in his official capacity.

27. At all times hereinafter mentioned, Defendant, JACKSON, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

28. Defendant, JACKSON, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

29. At all times hereinafter mentioned Defendant, JACKSON, was acting within the scope of her employment as a police officer with the New York City Police Department.

30. At all times hereinafter mentioned Defendant, JACKSON, was acting under color of law and authority as a police officers with the New York City Police Department.

31. Defendant, JACKSON, is sued individually and in her official capacity.

32. At all times hereinafter mentioned, Defendant, MARTINS, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

33. Defendant, MARTINS, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

34. At all times hereinafter mentioned Defendant, MARTINS, was acting within the scope of his employment as a police officer with the New York City Police Department.

35. At all times hereinafter mentioned Defendant, MARTINS, was acting under color of law and authority as a police officers with the New York City Police Department.

36. Defendant, MARTINS, is sued individually and in his official capacity.

37. At all times hereinafter mentioned, Defendant, SCIORTINO, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

38. Defendant, SCIORTINO, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

39. At all times hereinafter mentioned Defendant, SCIORTINO, was acting within the scope of his employment as a police officer with the New York City Police Department.

40. At all times hereinafter mentioned Defendant, SCIORTINO, was acting under color of law and authority as a police officers with the New York City Police Department.

41. Defendant, SCIORTINO, is sued individually and in his official capacity.

42. At all times hereinafter mentioned, Defendants, JOHN DOES 1-10, were employees and/or agents of the New York City Police Department, a municipal agency of the City of New York

43. Defendants, JOHN DOE 1-10, were assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

44. Defendants, JOHN DOE 1-10, are sued individually and in their official capacity.

45. At all times hereinafter mentioned Defendants, JOHN DOE 1-10, were acting within the scope of their employment as police officers with the New York City Police Department.

46. At all times hereinafter mentioned Defendants, JOHN DOE 1-10, were acting under color of law and authority as police officers with the New York City Police Department.

47. On or about August 9, 2017 and within ninety (90) days of occurrences complained of herein, Plaintiffs duly served Notices of Claim upon Defendant, CITY, in the manner and mode required by law.

48. That more than thirty (30) days have elapsed since the service of Plaintiffs' Notices of Claim and their claims have not been adjusted or paid.

49. That this action is brought within one (1) year and ninety (90) days from the date of occurrence complained of herein.

50. That Plaintiffs have complied with all conditions precedent applicable to the instant action.

51. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION
Trespass Under New York Law

52. Plaintiffs repeat the allegations contained in the forgoing paragraphs as if fully set forth herein.

53. On May 20, 2017 plaintiff, CHARLOTTE HEDGES, had the legal right to possession or occupancy of real estate located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

54. On May 20, 2017 plaintiff, SHALIK HEDGES, had the legal right to possession or occupancy of real estate located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

55. On May 20, 2017 at approximately 6:00 a.m., Defendant, CITY, through its police officers, servants and/or employees entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

56. On May 20, 2017 at approximately 6:00 a.m., Defendant, BEYDOUN, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

57. On May 20, 2017 at approximately 6:00 a.m., Defendant, CLAMP, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

58. On May 20, 2017 at approximately 6:00 a.m., Defendant, CORDERO, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

59. On May 20, 2017 at approximately 6:00 a.m., Defendant, HOLDER, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

60. On May 20, 2017 at approximately 6:00 a.m., Defendant, JACKSON, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

61. On May 20, 2017 at approximately 6:00 a.m., Defendant, MARTINS, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

62. On May 20, 2017 at approximately 6:00 a.m., Defendant, SCIORTINO, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

63. On May 20, 2017 at approximately 6:00 a.m., Defendants, JOHN DOE 1-10, entered onto Plaintiffs' home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York without permission and without authorization.

64. On May 20, 2017 at approximately 6:00 a.m., defendant, CITY, through its police officers, servants, agents and/or employees entered plaintiffs' home claiming they had a warrant to search the premises.

65. On May 20, 2017 at approximately 6:00 a.m., defendant, BEYDOUN, entered plaintiffs' home claiming he had a warrant to search the premises.

66. On May 20, 2017 at approximately 6:00 a.m., defendant, CLAMP, claiming she had a warrant to search the premises.

67. On May 20, 2017 at approximately 6:00 a.m., defendant, CORDERO, claiming he had a warrant to search the premises.

68. On May 20, 2017 at approximately 6:00 a.m., defendant, HOLDER, entered plaintiffs' home claiming he had a warrant to search the premises.

69. On May 20, 2017 at approximately 6:00 a.m., defendant, JACKSON, entered plaintiffs' home claiming she had a warrant to search the premises.

70. On May 20, 2017 at approximately 6:00 a.m., defendant, MARTINS, entered plaintiffs' home claiming he had a warrant to search the premises.

71. On May 20, 2017 at approximately 6:00 a.m., defendant, JOHN DOE 1-10, entered plaintiffs' home claiming they had a warrant to search the premises.

72. Defendants did not have a warrant to enter 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

73. Defendant, CITY, through its police officer, agents, servants and/or employees used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

74. Defendant, BEYDOUN, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

75. Defendant, CLAMP, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

76. Defendant, CORDERO, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

77. Defendant, HOLDER, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

78. Defendant, JACKSON, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

79. Defendant, MARTINS, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

80. Defendant, SCIORTINO, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

81. Defendants, JOHN DOE 1-10, used a battering ram to break open the door of 2953 Avenue W, Ap't 2B, in Brooklyn, New York, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

82. With the occupants handcuffed and immobilized, Defendant, CITY, through its agents, servants and employees conducted a destructive search of the home.

83. With the occupants handcuffed and immobilized, Defendant, BEYDOUN, conducted a destructive search of the home.

84. With the occupants handcuffed and immobilized, Defendant, CLAMP, conducted a destructive search of the home.

85. With the occupants handcuffed and immobilized, Defendant, CORDERO, conducted a destructive search of the home.

86. With the occupants handcuffed and immobilized, Defendant, HOLDER, conducted a destructive search of the home.

87. With the occupants handcuffed and immobilized, Defendant, JACKSON, conducted a destructive search of the home.

88. With the occupants handcuffed and immobilized, Defendant, MARTINS, conducted a destructive search of the home.

89. With the occupants handcuffed and immobilized, Defendant, SCIORTINO, conducted a destructive search of the home.

90. With the occupants handcuffed and immobilized, Defendants, JOHN DOE 1-10, conducted a destructive search of the home.

91. Defendants did not find any contraband or evidence of crimes despite searching the home.

92. At the time of the home invasion and Plaintiffs' arrests, Defendant, CITY, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

93. At the time of the home invasion and Plaintiffs' arrests, Defendant, CLAMP, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

94. At the time of the home invasion and Plaintiffs' arrests, Defendant, CORDERO, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

95. At the time of the home invasion and Plaintiffs' arrests, Defendant, HOLDER, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

96. At the time of the home invasion and Plaintiffs' arrests, Defendant, JACKSON, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

97. At the time of the home invasion and Plaintiffs' arrests, Defendant, MARTINS, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

98. At the time of the home invasion and Plaintiffs' arrests, Defendant, SCIORTINO, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

99. At the time of the home invasion and Plaintiffs' arrests, Defendants, JOHN DOE 1-10, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or other lawful basis.

100. By reason of the foregoing, Plaintiff's home was entered and searched without authority or consent.

101. As a result of the above-described trespass upon plaintiffs' property, Plaintiffs, CHARLOTTE HEDGES and SHALIK HEDGES suffered emotional trauma, fright, physical pain and suffering, humiliation, loss of liberty and other constitutional rights, among other injuries, including the debasement of a destructive raid on their home.

102. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION
Assault and Battery

103. Plaintiffs repeat the allegations contained in the forgoing paragraphs as if fully set forth herein.

104. That on May 20, 2017 at approximately 6:00 a.m., while Plaintiffs, CHARLOTTE HEDGES and SHALIK HEDGES were in their home located at 2953 Avenue W, Ap't 2B, in Brooklyn, New York, they were assaulted and battered by members of the New York City Police Department, including but not limited to defendants, BEYDOUN, CLAMP, HOLDER, JACKSON, MARTINS, SCIORTINO, and JOHN DOE 1-10.

105. Defendant, CITY, through its police officers, agents, servants and/or employees woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

106. Defendants, JOHN DOE 1-10, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

107. Defendant, BEYDOUN, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

108. Defendant, CLAMP, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

109. Defendant, CORDERO, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

110. Defendant, HOLDER, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

111. Defendant, JACKSON, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

112. Defendant, MARTINS, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

113. Defendant, SCIORTINO, woke up Plaintiff, CHARLOTTE HEDGES, at gunpoint.

114. Defendant officers confronted Ms. Hedges at gunpoint at her bedroom door, handcuffed her, and forced her to remain in the home's living room for more than an hour while the home was searched.

115. Defendant, CITY, through its police officers, agents, servants and/or employees confronted Plaintiff, SHALIK HEDGES, at gunpoint.

116. Defendants, JOHN DOE 1-10, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

117. Defendant, BEYDOUN, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

118. Defendant, CLAMP, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

119. Defendant, CORDERO, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

120. Defendant, HOLDER, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

121. Defendant, JACKSON, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

122. Defendant, MARTINS, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

123. Defendant, SCIORTINO, confronted Plaintiff, SHALIK HEDGES, at gunpoint.

124. Defendants ordered Plaintiff, SHALIK HEDGES, to the floor of the apartment, handcuffed him, and then grabbed the handcuffs and yanked Mr. Hedges from the floor causing him to sustain personal injuries.

125. Plaintiff, SHALIK HEDGES, was forced to remain handcuffed in his bedroom for more than an hour while the home was searched.

126. By the actions described above, Plaintiffs were intentionally placed in apprehension of imminent harmful and offensive contact by police officers employed by Defendant, CITY.

127. By the actions described above, Plaintiffs were assaulted, battered and otherwise injured without cause and/or justification by police officers employed by Defendant, CITY, including but not limited to BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO, and JOHN DOE 1-10.

128. The above-mentioned actions constituted assault and battery against Plaintiffs.

129. The aforementioned conduct of Defendants was willful and wanton and the Defendants acted with reckless disregard for the consequences of their actions.

130. As a result of the foregoing, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish,

anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.

131. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACITON
False Imprisonment Under New York Law

132. Plaintiffs repeat the allegations contained in the forgoing paragraphs as if fully set forth herein.

133. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees

134. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees.

135. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, BEYDOUN.

136. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, BEYDOUN.

137. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, CLAMP.

138. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, CLAMP.

139. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, CORDERO.

140. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, CORDERO.

141. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, HOLDER.

142. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, HOLDER.

143. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, JACKSON.

144. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, JACKSON.

145. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, MARTINS.

146. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, MARTINS.

147. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendant, SCIORTINO.

148. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendant, SCIORTINO.

149. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, CHARLOTTE HEDGES, was lawfully in her home, she was detained against her will and falsely arrested by defendants, JOHN DOE 1-10.

150. On May 20, 2017 at approximately 6:00 a.m., while plaintiff, SHALIK HEDGES, was lawfully in his home, he was detained against his will and falsely arrested by defendants, JOHN DOE 1-10.

151. The aforementioned actions constitute false arrest and false imprisonment and were carried out without cause and/or justification by police officers employed by defendant, CITY, including but not limited to defendants, BEYDOUN, CLAMP. CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO, and JOHN DOE 1-10.

152. Plaintiffs' detention and imprisonment were without probable cause, without a warrant and in bad faith.

153. In commencing and continuing said wrongful detainment and imprisonment, Defendants caused plaintiffs to be wrongfully detained in violation of the laws of the State of New York and their constitutional rights.

154. At the time of the unlawful imprisonment, Plaintiffs had not committed any illegal act.

155. At the time of the unlawful imprisonment, Plaintiffs had not committed or attempted to commit any crime.

156. Plaintiffs had not given Defendants probable cause to believe that they had committed any illegal acts.

157. At the time of Plaintiffs' unlawful imprisonment, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

158. Defendants acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiffs.

159. The aforesaid arrest was malicious, unlawful and not based upon a valid warrant, probable cause, and/or any other justification, and was therefore a false arrest.

160. As a result of the foregoing, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within their community.

161. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

Unlawful Home Entry, Search, and Arrest Under the United States Constitution

162. Plaintiffs repeat the allegations of the forgoing paragraphs as though fully stated herein.

163. By the actions described above, the individual Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, deprived Plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to their right to be free and secure in their persons and home and their right to be free from arrest or search, except on probable cause or pursuant to a warrant supported by probable cause.

164. Defendant, BEYDOUN, failed and refused to properly investigate allegations relating to Plaintiffs.

165. Defendant, BEYDOUN, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

166. Defendant, BEYDOUN, failed and refused to determine whether there was a lawfully-issued warrant permitting his entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

167. Defendant, CLAMP, failed and refused to properly investigate allegations relating to Plaintiffs.

168. Defendant, CLAMP, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

169. Defendant, CLAMP, failed and refused to determine whether there was a lawfully-issued warrant permitting her entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

170. Defendant, CORDERO, failed and refused to properly investigate allegations relating to Plaintiffs.

171. Defendant, CORDERO, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

172. Defendant, CORDERO, failed and refused to determine whether there was a lawfully-issued warrant permitting his entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

173. Defendant, HOLDER, failed and refused to properly investigate allegations relating to Plaintiffs.

174. Defendant, HOLDER, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

175. Defendant, HOLDER, failed and refused to determine whether there was a lawfully-issued warrant permitting his entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

176. Defendant, JACKSON, failed and refused to properly investigate allegations relating to Plaintiffs.

177. Defendant, JACKSON, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

178. Defendant, JACKSON, failed and refused to determine whether there was a lawfully-issued warrant permitting his entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

179. Defendant, MARTINS, failed and refused to properly investigate allegations relating to Plaintiffs.

180. Defendant, MARTINS, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

181. Defendant, MARTINS, failed and refused to determine whether there was a lawfully-issued warrant permitting his entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

182. Defendant, SCIORTINO, failed and refused to properly investigate allegations relating to Plaintiffs.

183. Defendant, SCIORTINO, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

184. Defendant, SCIORTINO, failed and refused to determine whether there was a lawfully-issued warrant permitting his entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

185. Defendants, JOHN DOE 1-10, failed and refused to properly investigate allegations relating to Plaintiffs.

186. Defendants, JOHN DOE 1-10, failed and refused to properly investigate allegations relating to 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

187. Defendants, JOHN DOE 1-10, failed and refused to determine whether there was a lawfully-issued warrant permitting entry into 2953 Avenue W, Ap't 2B, in Brooklyn, New York.

188. Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, violated Plaintiffs' rights secured by the Civil Rights Act of 1871, 42 USC §1983, and rights secured by the Fourth and Fourteenth Amendments to the United States Constitution and rights secured under the laws of the State of New York and the Constitution of the State of New York.

189. Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, acting under color of state law, used their authority and power for a wrongful purpose and violated Plaintiffs' rights by assaulting, battering them, invading their home and falsely detaining them.

190. These acts were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts and were done without lawful justification.

191. The conduct and actions of Defendants, acting under color of law, in failing to take any steps to protect Plaintiffs from the unjustified and unconstitutional was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of their acts.

192. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, and loss of liberty and other constitutional rights, among other injuries and the debasement of a prolonged and destructive raid on their home.

193. By reason of the foregoing, Plaintiffs demand judgment against Defendants, in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION
Unreasonable Force Under the United States Constitution

194. Plaintiff, SHALIK HEDGES, repeats the allegations of the foregoing paragraphs as though fully stated herein.

195. By the actions described above, the individual Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO or JOHN DOE 1, deprived Plaintiff, SHALIK HEDGES, of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free from excessive and unreasonable force, and rights secured under the laws of the State of New York and the Constitution of the State of New York.

196. Defendant, JOHN DOE 1, acting under color of state law, used his authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

197. Defendant, BEYDOUN, acting under color of state law, used his authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

198. Defendant, CLAMP, acting under color of state law, used her authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

199. Defendant, CORDERO, acting under color of state law, used her authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

200. Defendant, HOLDER, acting under color of state law, used his authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

201. Defendant, JACKSON, acting under color of state law, used her authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

202. Defendant, MARTINS , acting under color of state law, used his authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

203. Defendant, SCIORTINO, acting under color of state law, used his authority and power for a wrongful purpose and violated the rights of Plaintiff, SHALIK HEDGES, by assaulting and battering him.

204. These acts were done intentionally, maliciously and/or with a reckless disregard for their natural and probable consequences and were done without lawful justification.

205. The conduct and actions of defendant, JOHN DOE 1, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of his acts.

206. The conduct and actions of defendant, CLAMP, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of her acts.

207. The conduct and actions of defendant, CORDERO, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of his acts.

208. The conduct and actions of defendant, HOLDER, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of his acts.

209. The conduct and actions of defendant, JACKSON, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of her acts.

210. The conduct and actions of defendant, MARTINS, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of his acts.

211. The conduct and actions of defendant, SCIORTINO, acting under color of law, in failing to take any steps to protect Plaintiff, SHALIK HEDGES, from unjustified and

unconstitutional acts, was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of his acts.

212. As a result of the foregoing, Plaintiff, SHALIK HEDGES, suffered violation of his constitutional rights and physical pain and suffering, among other injuries. He suffered from shock, fear, and emotional upset and trauma.

213. By reason of the foregoing, Plaintiff, SHALIK HEDGES, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

Failure to Intervene to Prevent the Violation of Plaintiffs' Civil Rights

214. Plaintiffs repeat the allegations of the foregoing paragraphs as though fully stated herein.

215. By the actions described above, the individual Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, failed to intervene to prevent or end the unlawful home entry, use of force, search, assault, battery and unlawful detention and arrest of the Plaintiffs, despite having a reasonable opportunity to do so.

216. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, and loss of liberty and other constitutional rights, among other injuries including the debasement of a prolonged and destructive raid on their home.

217. By reason of the foregoing, Plaintiffs demand judgment against the Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION
Negligence

218. Plaintiffs repeat the allegations of the forgoing paragraphs as though fully stated herein.

219. Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, negligently performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

220. As a result of the negligence of Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, Plaintiffs were caused to suffer personal injuries, violation of their constitutional rights, and the emotional upset, shock, fear, and trauma of the conduct to which they were subjected.

221. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, loss of liberty and other constitutional rights, among other injuries, including a prolonged and destructive raid on her home.

222. By reason of the foregoing, Plaintiffs demand judgment against Defendants, in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION
Negligence

223. Plaintiffs repeats the allegations contained in the forgoing paragraphs as if fully set forth herein.

224. The acts complained of herein resulted from Defendant, CITY, through its agents, servants and employees, breaching its duty to properly retain, assign, train, supervise or discipline its law enforcement personnel, including but not limited to Police personnel who unlawfully searched Plaintiffs' home, assaulted and battered, arrested, detained them and caused property damage or loss to Plaintiffs herein.

225. The actions of Defendant, CITY, through its agents, servants and/or employees heretofore described constitute negligence in that Defendant, CITY, negligently retained, trained or failed to train its agents, servants and/or employees, including Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10.

226. Defendant, CITY, was negligent in its hiring and retention of its agents, servants and/or employees, especially Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, who the CITY knew or, in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of authority and misused and abused their positions.

227. Defendant, CITY's failure properly to hire, retain, assign, train, supervise or discipline its Police personnel, including the Police personnel involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional home invasions, searches, and arrests and allowed the individual Defendants to believe that they could with impunity enter, search, arrest, and detain Plaintiffs and damage or steal their property.

228. By reason of the foregoing, the Defendant, CITY, through its agents, servants, and employees, failed and refused to use such care in the performance of its duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

229. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, loss of liberty and other constitutional rights, among other injuries, including the debasement of a prolonged and destructive raid on their home.

230. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

231. Plaintiffs repeats the allegations contained in the forgoing paragraphs as if fully set forth herein.

232. Defendant, BEYDOUN's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

233. Defendant, CLAMP's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

234. Defendant, CORDERO's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

235. Defendant, HOLDER's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

236. Defendant, JACKSON's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

237. Defendant, MARTINS' conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

238. Defendant, SCIORTINO's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

239. Defendants, JOHN DOES' conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

240. Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.

241. Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, acted with utter disregard of the consequences of his actions.

242. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

243. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

TENTH CAUSE OF ACTION
Federal Claims against the City of New York

244. Plaintiffs repeat the allegation of the foregoing paragraphs as if set forth in full herein.

245. The conduct to which the Plaintiffs were subjected resulted from and was caused by the failure of Defendant, CITY OF NEW YORK, properly to train and supervise its personnel, including the Police personnel involved herein.

246. Defendant, CITY OF NEW YORK, through its policymakers knew to a moral certainty that their employees confront situations requiring them to, among other things, properly identify the correct apartment number for executing search or arrest warrants and determine the identity of people subject to search warrants.

247. Defendant, CITY OF NEW YORK, through its policymakers knew to a moral certainty that police officers would be presented with difficult choices of the sort that training or supervision would make less difficult or that there is a history of employees mishandling such situations, and the employees' wrong choice frequently caused the deprivation of constitutional rights.

248. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, to believe that they could ignore the plain fact that, among other things, that the apartment they entered was not the one specified on an otherwise validly procured warrant, or that there was never lawful basis to detain and arrest the Plaintiffs.

249. That the actions of Defendant, CITY, its agents, servants and/or employees heretofore described violate Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful home entry, search, and arrest.

250. That Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

251. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants to believe that they could ignore the plain fact that, among other things, that the apartment they entered was not the one specified or that there was never any lawful basis to detain and arrest the Plaintiffs.

252. All of the acts by the police defendants described above were carried out pursuant to policies and practices of defendant, CITY, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the Defendant, CITY, and its agency, the NYPD.

253. Defendant, CITY, by its policy-making agents, servants and employees, authorized, sanctioned and/or ratified the police defendants' wrongful acts; and/or failed to prevent or stop these acts; and/or allowed or encouraged these acts to continue.

254. That the sanctioning and ratification of these policies, customs and practices constitute deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons residing in the City of New York.

255. The actions of the defendant, CITY, resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to conduct warrantless searches and arrests; to ignore deficiencies in search warrants and to permit and allow the wrongful detention of citizens.

256. The actions of defendant, CITY, resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to break into people's home, search, arrest and detain citizens.

257. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the CITY for a substantial period of time.

258. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the CITY and their predecessors in interest did not discipline individuals who engaged in such practices.

259. That these policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in unconstitutional and impermissible searches, arrests and imprisonments,

particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

260. The City's policies and practices in existence at the time of the conduct complained of herein, which caused Plaintiffs' injuries herein included, inter alia: 1) failure to properly supervise, train, instruct, and discipline police officers with regard to proper conduct and investigation at and in relation to carrying out a search warrant; 2) failure to supervise and train its officers in the preparation of truthful police paperwork, or to correctly and accurately document and preserve evidence or to memorialize investigative steps taken, or circumstances surrounding the obtaining of evidence that could be relevant to the investigation and/or prosecution, and/or discoverable in any litigation; 3) failure to properly train officers with respect to the New York State Penal Law and the state and federal Constitutions and with regard to adequate evidence necessary to accuse citizens of committing crimes; 4) failure to train with respect to the exercise and limitations of their authority; 5) failure to properly supervise, train, instruct, and discipline police officers, including defendant herein, known to be irresponsible in their dealings with citizens of the community; known to violate state and federal law and state and federal constitutional limitations in their investigative and law enforcement conduct, known to fabricate and falsify

evidence, known to manipulate, intimidate, threaten, and coerce witnesses, known to deprive criminal defendants of their right to a fair trial.

261. The effect of this practice is to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

262. That in the vast majority of police abuse cases that result in verdicts or substantial settlements for the victims, defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.

263. That defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never even reopens an investigation previously conducted.

264. That in a substantial number of cases, defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.

265. On information and belief, Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that they and others were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiffs herein.

266. Police officers receive no training or woefully inadequate training regarding applications for search warrants; conduct of searches pursuant to warrants; documentation of witness statements in a manner that will accurately documents and preserve the true circumstances surrounding applications for warrants.

267. Defendant, CITY, knew or should have known that the acts alleged herein would deprive Plaintiffs of their rights, in violation of the Fourth and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11, and 12 of the Constitution of the State of New York, including, without limitation, Plaintiffs' freedom unlawful searches and seizures, deprivation of liberty and property without due process of law.

268. That the policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:

- a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
- d) The fact that, upon information and belief, only a small number of police officers have been has been fired for such misconduct since 1989.
- e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

269. Defendant, CITY, has had a policy of ignoring law enforcement improprieties and misconduct, including the purposeful and wrongful accusation of citizens' committing crimes that it knew they had not committed and the conduct of improper and baseless searches of citizens' home.

270. The conduct to which Plaintiffs were subjected resulted from and was caused by the failure of Defendant, CITY, to properly train and supervise its personnel, including the Police personnel involved herein.

271. Defendant, CITY, through its policymakers knew to a moral certainty that their employees confront situations requiring them to, among other things, scrutinize the credibility of informants whose information is used to seek search warrants, properly identify the correct apartment number for executing search or arrest warrants and determine the identity of people subject to search warrants.

272. Defendant, CITY, through its policymakers knew to a moral certainty that police officers would be presented with difficult choices of the sort that training or supervision would make less difficult or that there is a history of employees mishandling such situations, and the employees' wrong choice frequently caused the deprivation of constitutional rights.

273. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, to believe that they could ignore the plain fact that, among other things, that the apartment they entered was not the one specified on an otherwise validly procured warrant, or that there was never lawful basis to detain and arrest the Plaintiffs.

274. That the actions of Defendant, CITY, its agents, servants and/or employees heretofore described violate Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful home entry, search, and arrest.

275. That Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

276. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants to believe that they could ignore the plain fact that, among other things, the apartment they entered was not the one specified or that there was never any lawful basis to detain and arrest the Plaintiffs.

277. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, and loss of liberty and other constitutional rights, among other injuries, including the debasement of a prolonged and destructive raid on her home.

278. By reason of the foregoing, Plaintiffs demand judgment against Defendant, CITY OF NEW YORK, in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

ELEVENTH CAUSE OF ACTION

42 U.S.C. § 1988

279. Plaintiffs repeat the allegation of the foregoing paragraphs as if set forth in full herein.

280. In the event that Plaintiffs are successful in the prosecution of the aforesaid claims, Plaintiffs shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from Defendants.

281. By reason of the foregoing, Defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiffs, CHARLOTTE HEDGES and SHALIK HEDGES, respectfully demand judgment against Defendants, THE CITY OF NEW YORK, BEYDOUN, CLAMP, CORDERO, HOLDER, JACKSON, MARTINS, SCIORTINO and JOHN DOE 1-10, and requests compensatory and punitive damages to be fixed at trial in a

sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action pursuant to 42 U.S.C. §1988; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: August 7, 2018
New York, New York

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608-1306


By: MATTHEW FLAMM

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY-----X
CHARLOTTE HEDGES and SHALIK HEDGES,

Plaintiffs,

-against-

VERIFICATION
Index No.

THE CITY OF NEW YORK; SERGEANT IMAD BEYDOUN, Shield 3953; LIEUTENANT MAGGIE CLAMP; DETECTIVE NELSON CORDERO; DETECTIVE MARK HOLDER; DETECTIVE ESSENCE JACKSON; DETECTIVE EDDIE MARTINS; POLICE OFFICER ANTHONY SCIORTINO, Shield 5372, and POLICE OFFICERS JOHN DOE 1-10, the names being fictitious and presently unknown, individually and in their official capacity as employees of the New York City Police Department,

Defendants.

-----X

MATTHEW FLAMM, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury pursuant to Civil Practice Law and Rules Section 2106.

I am associated with Rubert & Gross, P.C., attorneys for the Plaintiffs and have read the foregoing COMPLAINT and know the contents thereof; the same is alleged upon information and belief, and, as to those matters, I believe them to be true. The reason this verification is made by me and not the Plaintiffs is that they do not reside in the county in which Rubert & Gross has its office. CPLR §3020 (d)(3).

DATED: August 7, 2018
New York, New York


Matthew Flamm